BYLAWS
APPS FOR CHANGE

A Minnesota Nonprofit Corporation
Adopted and Amended: June 2026

ARTICLE I — NAME AND PRINCIPAL OFFICE

Section 1.1 Name

The name of this organization is Apps for Change (the "Corporation"), incorporated as a Minnesota nonprofit corporation pursuant to the Minnesota Nonprofit Corporation Act, Minnesota Statutes Chapter 317A.

Section 1.2 Principal Office

The principal office of the Corporation shall be located at such place within or outside the State of Minnesota as the Board of Directors may from time to time determine by resolution. The Corporation may maintain additional offices at any place or places as the Board may from time to time designate.

ARTICLE II — PURPOSE AND LIMITATIONS

Section 2.1 Charitable Purpose

The Corporation is organized and shall be operated exclusively for charitable and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code"), and its corresponding regulations as they now exist or may hereafter be amended.

Section 2.2 Specific Mission

The Corporation develops free mobile applications, educational tools, and community-based programs that promote self-advocacy, goal achievement, personal resilience, caregiver support, community engagement, and the reduction of poverty, dependence, and social despair. All apps and programs are provided directly to individuals and community members at no cost.

Section 2.3 Non-Inurement

No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, its directors, officers, or other private persons, except that the Corporation is authorized and empowered to pay reasonable compensation for services actually rendered and to make payments and distributions in furtherance of its exempt purposes as described in Article II, Section 2.2.

Section 2.4 Political and Lobbying Limitations

The Corporation shall not participate or intervene in any political campaign on behalf of or in opposition to any candidate for public office. The Corporation shall not devote a substantial part of its activities to carrying on propaganda or otherwise attempting to influence legislation, except as permitted under Section 501(h) of the Code. All activities of the Corporation shall be consistent with its 501(c)(3) status.

ARTICLE III — MEMBERSHIP

The Corporation shall have no members as defined under Minnesota Statutes Chapter 317A. All governance authority is vested exclusively in the Board of Directors. Any individuals or community participants referred to informally as “members” or “community partners” shall have no voting rights, ownership interest, or fiduciary obligations with respect to the Corporation.

ARTICLE IV — BOARD OF DIRECTORS

Section 4.1 Governing Authority

The business and affairs of the Corporation shall be managed by, or under the direction of, its Board of Directors in accordance with Minnesota Statutes § 317A.201. The Board is responsible for setting organizational strategy, approving budgets, ensuring legal compliance, and overseeing the Executive Director.

Section 4.2 Number of Directors

The Board shall consist of three (3) directors. The positions are: (1) Chair/President & Executive Director, (2) Treasurer, and (3) Secretary. The number of directors may be increased or decreased by amendment to these Bylaws, provided the Board shall never consist of fewer than three (3) directors unless permitted by Minnesota law.

Section 4.3 Terms of Office

Directors shall serve one (1) year terms beginning at the close of the annual meeting of the Board or upon appointment to fill a vacancy. Directors may be re-elected or reappointed without limitation on the number of consecutive terms.

Section 4.4 Qualifications

Directors shall be natural persons 18 years of age or older. At least one director shall be a resident of the State of Minnesota, unless otherwise permitted by Minnesota Statutes § 317A.203. Directors need not be residents of Minnesota unless required by applicable law.

Section 4.5 Standard of Conduct

Each director shall discharge their duties in good faith, in a manner the director reasonably believes to be in the best interests of the Corporation, and with the care an ordinarily prudent person in a like position would exercise under similar circumstances, consistent with Minnesota Statutes § 317A.251.

Section 4.6 Resignation

Any director may resign at any time by giving written notice (including by email or text message) to the Chair or Secretary of the Corporation. Unless the notice specifies a later effective date, a resignation is effective when delivered. Acceptance of the resignation is not required for it to be effective.

Section 4.7 Removal

Any director may be removed with or without cause by the affirmative vote of a majority of the remaining directors at any duly convened Board meeting, provided that notice of the proposed removal is included in the meeting notice. Removal does not affect any contractual rights of the director.

Section 4.8 Vacancies

Vacancies in the Board of Directors, including vacancies resulting from an increase in the number of directors, resignation, death, or removal, shall be filled by a majority vote of the remaining directors at any duly held meeting, even if the remaining directors constitute less than a quorum. A director elected to fill a vacancy shall serve for the unexpired term of the predecessor or until a successor is duly elected.

ARTICLE V — OFFICERS AND EXECUTIVE DIRECTOR

Section 5.1 Officers

The officers of the Corporation shall consist of the Chair/President & Executive Director, Treasurer, and Secretary. Officers shall be elected or appointed by the Board of Directors and shall hold office for one-year terms or until their successors are duly elected or appointed. Officers may be re-elected or reappointed without limitation. One person may hold more than one office, except that the same person may not hold both the Chair/President and Secretary positions simultaneously, unless permitted by Minnesota Statutes § 317A.305.

Section 5.2 Chair / President

The Chair/President shall preside at all meetings of the Board, provide organizational leadership, serve as the chief spokesperson of the Corporation, and carry out such other duties as the Board may assign. When the position is also held by the Executive Director, the roles of Chair/President and Executive Director are combined as described in Section 5.3.

Section 5.3 Executive Director — Role and Responsibilities

The Executive Director ("ED") is the chief executive officer of the Corporation. The ED shall be responsible for the overall management and administration of the Corporation's programs, staff (if any), finances (in coordination with the Treasurer), and daily operations in furtherance of the Corporation's mission as defined in Article II. The ED reports to the Board of Directors and shall carry out all directions and policies established by the Board.

Section 5.4 Executive Director Decision-Making Authority — Operational Decisions by Text Notification

The Executive Director is authorized to make operational decisions necessary to advance the Corporation's mission and day-to-day functions without convening a formal Board meeting, subject to the following conditions:

(a) Scope. This authority applies to operational matters, including but not limited to: program decisions, vendor and contractor arrangements, content and application updates, communications on behalf of the Corporation, minor budget reallocations within Board-approved categories, and administrative functions. This section does not authorize the ED to approve executive compensation, enter into debt obligations, amend these Bylaws, acquire or dispose of real property, or take any other action expressly reserved to the Board.

(b) Notification Requirement. Before taking action on any non-routine operational decision, the ED shall notify all directors of the proposed action via text message or email, including a brief description of the decision and the intended effective date.

(c) Objection Period. Directors shall have twenty-four (24) hours from the time the notification is sent to raise an objection or request a formal Board discussion. If no

director objects within that period, the ED is authorized to proceed. If any director objects, the matter shall be escalated to a full Board decision under Article VI before any action is taken.

(d) Acknowledgment. A director's affirmative response via text or email shall constitute acknowledgment of the proposed action and waiver of the objection period for that director.

(e) Recordkeeping. The ED shall maintain a log of all text or email notifications sent under this section, including the substance of the proposed action, the date and time sent, and the outcome. This log shall be presented to the Board at each regular meeting for review and ratification.

(f) Relationship to Section 6.6. This section governs ED operational authority and is distinct from the Board's written consent procedure under Section 6.6. Actions taken under this section are ED decisions, not Board votes. Any matter requiring a binding Board resolution must follow the procedures in Article VI.

Section 5.8 Treasurer

The Treasurer shall be responsible for overseeing the financial affairs of the Corporation, maintaining accurate financial records, presenting financial reports to the Board, and ensuring that proper fiscal controls are in place. The Treasurer shall coordinate with the Executive Director on budget preparation and financial management. In the event the Corporation is required to file informational returns with the IRS, the Treasurer shall ensure timely filing.

Section 5.9 Secretary

The Secretary shall be responsible for keeping and maintaining the official records of the Corporation, including minutes of all Board meetings and actions taken without a meeting. The Secretary shall provide notice of meetings, maintain the official copy of these Bylaws and all Board resolutions, and perform such other duties as the Board may assign.

Section 5.10 Resignation and Removal of Officers

An officer may resign at any time by giving written notice to the Board. Officers may be removed with or without cause by a majority vote of the Board. Removal does not affect any contractual rights the officer may have.

ARTICLE VI — MEETINGS AND BOARD DECISIONS

Section 6.1 Regular Meetings

The Board of Directors shall hold at least four (4) regular meetings per year (approximately quarterly). The time, date, and location of regular meetings shall be set by the Board. Regular meetings may be held in person, by telephone, by video conference, or by any other means by which all participating directors can simultaneously hear and communicate with each other, as permitted under Minnesota Statutes § 317A.231.

Section 6.2 Special Meetings

Special meetings of the Board may be called at any time by the Chair/President or by any two (2) directors. Notice of a special meeting, including the date, time, location or remote access

information, and purpose, shall be provided to all directors at least forty-eight (48) hours in advance, unless all directors waive such notice in writing (including electronically).

Section 6.3 Notice of Meetings

Notice of any Board meeting shall be given at least seven (7) days in advance for regular meetings, and at least forty-eight (48) hours in advance for special meetings. Notice may be given by any of the following methods: personal delivery, mail, email, or text message to the phone number or email address on file for each director. Notice is deemed received when sent by email or text message. Any director may waive notice in writing before, at, or after the meeting. Attendance at a meeting constitutes a waiver of notice unless the director objects to the lack of notice at the outset.

Section 6.4 Quorum and Voting at Meetings

A majority of the directors then in office constitutes a quorum for the transaction of business at any Board meeting, consistent with Minnesota Statutes § 317A.231. If a quorum is present, an action of the Board is approved if it receives the affirmative vote of a majority of directors present at the meeting. Each director shall have one (1) vote. Voting by proxy is not permitted.

Section 6.5 Remote and Electronic Participation in Meetings

Directors may participate in any Board meeting by telephone conference call, video conference, or similar electronic communications technology by which all directors participating can simultaneously hear and communicate with each other. Participation by such means constitutes presence in person at the meeting for purposes of quorum and voting, in accordance with Minnesota Statutes § 317A.231(a).

Section 6.6 Action by Text Message or Written Consent Without a Meeting

The Board of Directors may take action without a formal meeting, including by text message, email, or other electronic communication, provided all of the following requirements are met, in accordance with Minnesota Statutes § 317A.237:

(a) Initiation. Any director or officer may initiate a proposed action by transmitting a written description of the proposed action to all directors via group text message, email, or another written electronic medium accessible to the full Board.

(b) Unanimous Written Consent Required. Action without a meeting is valid only if ALL directors then in office provide written consent to the specific action proposed. A response of "yes," "I agree," "approved," or words of similar clear affirmative intent via text message or email shall constitute written consent. Silence, non-response, or ambiguous response shall not constitute consent.

(c) Timeframe for Response. Directors shall respond within the timeframe specified in the initiating message, which shall not be less than twenty-four (24) hours from the time the message was sent, unless all directors expressly agree to a shorter period.

(d) Withdrawal of Consent. A director may withdraw consent at any time before the action is finalized by providing written notice (including by text or email) to all other directors.

(e) Recordkeeping. The Secretary (or designee) shall retain a record of all text message or email exchanges in which Board actions are taken without a meeting. Such records shall include the full text of the proposed action, the date and time of each director's

response, and confirmation that unanimous consent was received. These records shall be included in or attached to the official minutes.

(f) Effective Date. Action taken without a meeting is effective when the last director's written consent is received, unless the consent specifies a later effective date.

(g) Limitations. The Board shall not use the text/written consent procedure to circumvent meaningful deliberation on major decisions. For any action that involves approving executive compensation, amending the Bylaws, or dissolving the Corporation, the Board is strongly encouraged to convene a formal meeting (in person or remote) so that directors may discuss the matter fully before voting.

Section 6.7 Annual Meeting

The Board shall hold an annual meeting for the purpose of electing or reappointing directors and officers, reviewing annual financials, and conducting other necessary business. The annual meeting shall be held at least once per calendar year at a time determined by the Board.

Section 6.8 Open Community Town Halls

The Corporation may convene periodic community town hall meetings (in person or virtually) as a supplement to Board meetings. Town hall meetings are not official Board meetings and no binding Board votes shall be taken at a town hall. Town halls are intended to present upcoming apps and features to community members, gather input on new development ideas, and maintain open dialogue between the Board and the communities the Corporation serves. Input gathered at town halls shall be summarized and presented to the Board for consideration at a subsequent Board meeting.

Section 6.9 Minutes

The Secretary shall cause minutes of all Board meetings and records of all actions taken without a meeting (including text/written consent actions) to be prepared and maintained. Minutes shall be provided to all directors and shall be approved at the next regular Board meeting or by written consent. Approved minutes shall be maintained as permanent records of the Corporation.

ARTICLE VII — COMMITTEES

The Board of Directors may, by resolution, designate one or more committees to advise the Board. Any such committee shall have only the authority expressly granted by Board resolution and shall not exercise the authority of the Board. The Board retains final decision-making authority on all matters. No standing committees are established by these Bylaws. All committee actions shall be reported to and ratified by the full Board.

ARTICLE VIII — CONFLICT OF INTEREST

Section 8.1 Policy Requirement

The Corporation shall adopt and maintain a written Conflict of Interest Policy as required by best practices for 501(c)(3) organizations and consistent with Minnesota Statutes § 317A.255. The policy shall, at a minimum, require disclosure of actual or potential conflicts of interest, recusal of interested directors or officers from related votes and deliberations, and documentation of conflict-of-interest transactions in the minutes.

Section 8.2 Annual Disclosure

Each director and officer shall complete an annual conflict of interest disclosure statement identifying any relationships, positions, or interests that could give rise to a conflict. The Secretary shall maintain these disclosures as part of the Corporation's permanent records.

ARTICLE IX — INDEMNIFICATION

The Corporation shall indemnify its directors and officers to the fullest extent permitted by Minnesota Statutes § 317A.521 and § 317A.523, and may advance expenses in connection with any proceeding in which a director or officer is named. The Corporation may, but is not required to, purchase and maintain directors' and officers' liability insurance. Indemnification shall not be available to the extent the act or omission of the director or officer constitutes fraud, willful misconduct, or a knowing violation of law.

ARTICLE X — RECORDS AND FINANCES

Section 10.1 Books and Records

The Corporation shall keep correct and complete books and records of its accounts and transactions, including minutes of all Board meetings and actions without a meeting, a record of all resolutions adopted, and a current list of directors and officers with their contact information, as required by Minnesota Statutes § 317A.461.

Section 10.2 Fiscal Year

The fiscal year of the Corporation shall begin on January 1 and end on December 31 of each year, or as otherwise determined by the Board by resolution. Any change to the fiscal year shall be documented in the minutes.

Section 10.3 Annual Budget

The Board of Directors shall approve an annual budget before or promptly after the start of each fiscal year. The Executive Director shall present a proposed budget for Board review. Material deviations from the approved budget shall require Board authorization.

Section 10.4 Financial Controls

The Board shall establish and maintain appropriate fiscal controls, including: authorization requirements for expenditures, review of bank statements, and separation of financial duties where practicable. The Treasurer shall provide the Board with financial reports at each regular meeting.

Section 10.5 IRS Filings

The Corporation shall file all required informational returns with the Internal Revenue Service (e.g., Form 990, 990-EZ, or 990-N, as applicable) by the required due dates. Failure to file required returns for three consecutive years will result in automatic revocation of the Corporation's 501(c)(3) status under federal law. The Board shall designate a responsible party to oversee timely filing.

Section 10.6 Executive Director Expense Reimbursement

The Corporation shall reimburse the Executive Director for reasonable and necessary out-of-pocket expenses incurred in the performance of duties on behalf of the Corporation, subject to the following conditions:

(a) Eligible Expenses. Reimbursable expenses include costs directly related to the Corporation's operations and mission, including but not limited to: office and program supplies, software and technology subscriptions, filing and registration fees, postage and shipping, communications costs, travel required for organizational business, and other ordinary and necessary operational expenditures consistent with the Corporation's exempt purposes.

(b) Documentation. The Executive Director shall submit a written reimbursement request accompanied by receipts or other supporting documentation for each expense. Each request shall include a brief description of the business purpose of the expenditure.

(c) Approval. Reimbursement requests shall be reviewed and approved by the Treasurer. For any individual reimbursement request exceeding $500, or for cumulative reimbursement requests exceeding $1,000 in any calendar month, prior approval of the full Board shall be required. The Executive Director shall not approve their own reimbursement requests.

(d) Timeliness. Reimbursement requests shall be submitted within sixty (60) days of incurring the expense. Requests submitted more than ninety (90) days after the expense date may be denied at the Board's discretion.

(e) Budget Consistency. All reimbursements shall be consistent with the Board-approved annual budget. Any reimbursement that would cause a material deviation from the approved budget requires prior Board authorization.

(f) Recordkeeping. All reimbursement requests, supporting documentation, and approvals shall be maintained as part of the Corporation's financial records and reported to the Board at each regular meeting.

ARTICLE XI — NON-DISCRIMINATION

The Corporation shall not unlawfully discriminate in its employment practices, volunteer engagement, program delivery, or governance on the basis of race, color, creed, religion, national origin, sex, gender identity, sexual orientation, marital status, familial status, disability, age, status with regard to public assistance, or any other characteristic protected by applicable federal, state, or local law, including but not limited to the Minnesota Human Rights Act, Minnesota Statutes Chapter 363A.

ARTICLE XII — WHISTLEBLOWER AND DOCUMENT RETENTION

Section 12.1 Whistleblower Policy

The Corporation shall adopt a Whistleblower Policy that encourages directors, officers, employees, and volunteers to report suspected illegal activity, significant financial irregularities, or serious ethical violations without fear of retaliation. The Board shall designate a process for reporting concerns confidentially where possible.

Section 12.2 Document Retention Policy

The Corporation shall adopt a Document Retention and Destruction Policy that identifies the categories of records to be retained and the applicable retention periods consistent with federal and Minnesota law. No documents shall be destroyed if the Corporation is aware that they may be relevant to a pending or reasonably anticipated legal matter, audit, or investigation.

ARTICLE XIII — AMENDMENTS TO BYLAWS

These Bylaws may be amended, altered, or repealed by the affirmative vote of a majority of the Board of Directors, provided that: (a) written notice of the proposed amendment, including the text of the proposed change, is delivered to all directors at least seven (7) days before the meeting at which the vote will be taken; or (b) all directors consent to the amendment in writing without a meeting in accordance with Article VI, Section 6.6. Amendments shall become effective immediately upon adoption unless the resolution specifies a later effective date. A copy of all amendments shall be attached to these Bylaws and maintained as part of the permanent records of the Corporation.

ARTICLE XIV — DISSOLUTION

Upon dissolution of the Corporation, the Board of Directors shall, after paying or making provision for the payment of all liabilities of the Corporation, distribute all remaining assets to one or more organizations that qualify as exempt organizations under Section 501(c)(3) of the Code, or to federal, state, or local government for a public purpose, in accordance with Minnesota Statutes § 317A.733. No assets shall be distributed to any private individual. The specific organizations to receive remaining assets shall be selected by the Board at the time of dissolution.

ARTICLE XV — SEVERABILITY

If any provision of these Bylaws is held invalid, illegal, or unenforceable under applicable law, such provision shall be ineffective to the extent of such invalidity, illegality, or unenforceability without invalidating or affecting the remaining provisions of these Bylaws, which shall continue in full force and effect.

CERTIFICATION OF ADOPTION

These Bylaws were duly adopted by the Board of Directors of Apps for Change on _____, 2026.

_____ Date: _____

Chair / President & Executive Director

_____ Date: _____

Treasurer

_____ Date: _____

Secretary